

The remaining arguments raised by Plaintiff (challenge to the surveillance video, captioning error in the Torres Declaration, absence of a warning, sweep sheet records) do not create any triable issues.

Summary Adjudication is Granted as to the 1st cause of action for negligence and the 4th cause of action for premises liability, as Defendant has established that it did not have actual or constructive notice of the dangerous condition. Summary Adjudication is also Granted as to the 2nd cause of action for negligent hiring and the 4th cause of action for negligent supervision. Plaintiff cannot establish causation. No alleged deficiency in hiring, training, or supervision could have been a substantial factor in causing Plaintiffs injuries because no employee had a reasonable opportunity to discover and remedy the condition before the incident occurred. Plaintiff's negligent hiring and supervision claims fail as a matter of law. Grant Summary Adjudication as to the 2nd and 4th causes of action. Summary Adjudication is also granted as to the 5th cause of action for vicarious liability. Plaintiff cannot demonstrate actionable negligence by a VONS employee. Without a triable issue as to an underlying tort committed by an employee acting within the scope of his employment, this claim fails. Grant Summary Adjudication of the 5th cause of action.

GRANT the Motion for Summary Judgment.

Plaintiff's request for a continuance under CCP § 437c(h) is denied because Plaintiff's counsel fails to submit a declaration in support of the request. Plaintiff is required to make an evidentiary showing that essential facts may exist to support the opposition to the motion for summary judgment but cannot presently be presented.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503833	COX VS FINANCE OF AMERICA REVERSE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR KEITH COX

Tentative Ruling:

GRANT.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507406	TABEL VS TOYOTA MOTOR SALES U.S.A., INC	MOTION TO COMPEL PLAINTIFF GHASAN TABEL'S DEPOSITION

Tentative Ruling:

Continue the Motion to 9/29/2026, 8:30am, D-4. If the Plaintiff's deposition goes forward on 9/17/2026, Defendant is Ordered to take this Motion off calendar. No Sanctions will be awarded. If the deposition does not go forward, Defendant to file a Declaration at least 5 days before the continued hearing date explaining why the deposition did not go forward.